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Case Number: 24PSCV01171 Hearing Date: July 23, 2026 Dept: 6

CASE

NAME: Maria

Munguia aka Nena Munguia v. St. Judge Heritage Medical Group, et al.

Defendants

Eric Joo-Hyung Lee, M.D., Yoko Takashima Bean, M.D., and St. Jude Heritage Medical Group's Motion to Continue Trial, FSC, MSC, and Related Dates

TENTATIVE

RULING

The Court GRANTS Defendants Eric Joo-Hyung Lee, M.D., Yoko Takashima Bean, M.D., and St. Jude Heritage Medical Group's Motion to Continue Trial, FSC, MSC, and Related Dates. The Court hereby advances and vacates the trial set for September 15, 2026, and the Final Status Conference set for September 1, 2026. The Court will set the future trial date, Final Status Conference, and related deadlines at the hearing on this Motion.

Moving Parties are ordered to give notice of the Court's ruling within five calendar days of this order.

BACKGROUND

This is a medical malpractice action. On April 12, 2024, plaintiff Maria Munguia aka Nena Munguia (Plaintiff) filed this action against defendants St. Jude Heritage Medical Group (St. Jude), Thomas Clayton Hughes, M.D. (Hughes), Eric Joo-Hyung Lee, M.D. (Lee), Yoko Takashima Bean, M.D. (Bean) (collectively, Defendants), alleging the sole cause of action for medical

negligence. On August 13, 2024, Plaintiff filed the operative First Amended Complaint (FAC), alleging the same cause of action against the same Defendants. On September 9, 2024, Hughes answered the FAC.

On June 15, 2026, Defendants Lee, Bean, and St. Jude moved to continue trial, the FSC, the MSC, and related dates. The Motion is unopposed.

LEGAL STANDARD

“Continuances are granted only on an affirmative showing of good cause requiring a continuance.” (In re Marriage of Falcone & Fyke (2008) 164 Cal.App.4th 814, 823.) A trial court has broad discretion in considering a request for a trial continuance. (Pham v. Nguyen (1997) 54 Cal.App.4th 11, 13-18.) California Rules of Court, rule 3.1332 sets forth factors for the Court to consider in ruling on a motion to continue trial. Whether the parties have stipulated to the postponement is a relevant factor for consideration. (See Code Civ. Proc., § 595.2, but see Lorraine v. McComb (1934) 220 Cal. 753, 756-757 [finding a stipulation to be merely “directory”].)

(c) Grounds for continuance

Although continuances of trials are disfavored, each request for a continuance must be considered on its own merits. The court may grant a continuance only on an affirmative showing of good cause requiring the continuance. Circumstances that may indicate good cause include:

(1)
The unavailability of an essential lay or expert witness because of death, illness, or other excusable circumstances;

(2)
The unavailability of a party because of death, illness, or other excusable circumstances;

(3)
The unavailability of trial counsel because of death, illness, or other

excusable circumstances;

(4)

The substitution of trial counsel, but only where there is an affirmative showing that the substitution is required in the interests of justice;

(5) The addition of a new party

if:

(A)

The new party has not had a reasonable opportunity to conduct discovery and prepare for trial; or

(B)

The other parties have not had a reasonable opportunity to conduct discovery and prepare for trial in regard to the new party's involvement in the case;

(6)

A party's excused inability to obtain essential testimony, documents, or other material evidence despite diligent efforts; or

(7)

A significant, unanticipated change in the status of the case as a result of which the case is not ready for trial.

(d)

Other factors to be considered

In

ruling on a motion or application for continuance, the court must consider all the facts and circumstances that are relevant to the determination. These may include:

(1) The proximity of the trial

date;

(2)

Whether there was any previous continuance, extension of time, or delay of trial due to any party;

(3) The length of the continuance requested;

(4)
The availability of alternative means to address the problem that gave rise to the motion or application for a continuance;

(5)
The prejudice that parties or witnesses will suffer as a result of the continuance;

(6)
If the case is entitled to a preferential trial setting, the reasons for that status and whether the need for a continuance outweighs the need to avoid delay;

(7)
The court's calendar and the impact of granting a continuance on other pending trials;

(8) Whether trial counsel is engaged in another trial;

(9) Whether all parties have stipulated to a continuance;

(10)
Whether the interests of justice are best served by a continuance, by the trial of the matter, or by imposing conditions on the continuance; and

(11)
Any other fact or circumstance relevant to the fair determination of the motion or application.

(Cal. Rules
of Court, rule 3.1332, subds. (c), (d).)

DISCUSSION

Defendants

Lee, Bean, and St. Jude (collectively, Moving Parties) request that the Court continue the trial from September 15, 2026 to December 15, 2026, and correspondingly continue the Final Status Conference to December 1, 2026, and all related discovery, expert discovery, and motion cutoff dates.^[1] Moving Parties argue good cause exists under California Rules of Court, rule 3.1332, subdivision (c) and (d), on the grounds that their designated trial counsel, Christopher Wend, who has been on an extended medical leave since April 3, 2026 that has been extended through November 2, 2026, and who they contend was assigned the matter for all purposes including trial such that no other firm attorney is authorized or prepared to try the case. Moving Parties also indicate that the associate handling the case would be departing the firm June 16, 2026, which leaves their counsel with additional challenges. Moving Parties further state that their Litigation Claims Specialist, Kim Parrett, who holds settlement authority for their professional liability insurer, is unavailable for the July 23, 2026 Mandatory Settlement Conference due to a preexisting mediation commitment. Moving Parties indicate that this is the first requested continuance and that the request of a three-month continue is modest, contending no party will be prejudiced while additional discovery remains anticipated and dispositive motions remain pending. Finally, Moving Parties argue the rule 3.1332, subdivision (d) factors and the interests of justice favor a continuance, that courts should exercise liberality in granting continuances absent prejudice, and that due process entitles them to a reasonable opportunity to prepare and present an adequate defense.

The

Court finds Moving Parties' Motion persuasive. Unavailability of trial counsel because of illness constitutes good cause for purposes of continuing trial. (Cal. Rules of Court, rule 3.1332, subd. (c)(3).) Moving Parties presented evidence that their trial counsel, Christopher Wend, will be unavailable for trial on September 15, 2026, due to illness. (Lee Decl., ¶¶ 6-19.) Other circumstances supporting a trial continuance and related deadlines include: (1) the recent departure of Moving Parties' counsel's associate who was handling this case; (2) the need to substitute trial counsel; (3) trial being less than two months away; and (4) this being the first trial continuance requested in this matter. (Lee Decl., ¶¶ 5, 20-21; Cal. Rules of Court, rule 3.1332, subds. (c)(3)-(c)(4), (d)(1)-(d)(2), (d)(4)-(d)(5).) The Court further construes the lack of opposition to this Motion as a concession that Moving Parties' arguments are meritorious. (D.I. Chadbourne, Inc. v. Superior Court (1964) 60 Cal.2d 723, 728, fn. 4 [where nonmoving party fails to oppose a ground for a motion, "it is assumed that [nonmoving party]

concedes" that ground].)

Based on the foregoing, the Court GRANTS the Motion. The Court hereby advances and vacates the trial set for September 15, 2026, and the Final Status Conference set for September 1, 2026. The Court will set the future trial date, Final Status Conference, and related deadlines at the hearing on this Motion.

CONCLUSION

The Court GRANTS Defendants Eric Joo-Hyung Lee, M.D., Yoko Takashima Bean, M.D., and St. Jude Heritage Medical Group's Motion to Continue Trial, FSC, MSC, and Related Dates. The Court hereby advances and vacates the trial set for September 15, 2026, and the Final Status Conference set for September 1, 2026. The Court will set the future trial date, Final Status Conference, and related deadlines at the hearing on this Motion.

Moving Parties are ordered to give notice of the Court's ruling within five calendar days of this order.

[1] Moving Parties mentioned the Mandatory Settlement Conference previously scheduled for July 23, 2026, but that was advanced and vacated after they filed this Motion.